

Delaware Roommate Contract

Pursuant to Title 25 (Landlord-Tenant Code)

This roommate contract is provided for the mutual benefit of roommates, and does not constitute legal advice. If you need legal advice, you must contact an attorney.

SECTION I. THE PROPERTY & PROPERTY

Date: _____

New Tenant: _____ hereinafter referred to as the "New Tenant"

Landlord/Principal: _____ hereinafter referred to as "Landlord/Principal".

Premises Address:

Current Co-Tenant(s): _____, _____,
_____, _____,
_____, _____

This agreement is to last for the same term as our lease agreement, which runs from _____ [start date] to _____ [end date].

- New Tenant understands that they are entering into a legally binding agreement that is enforceable by and between the other roommates and the Landlord/Principal Tenant.
- If the owner of the property is not living in the shared residence I understand that this agreement is not enforceable with regard to its owner and will not protect me against any claims that the owner may have against myself or my roommates under our roommate contract.

SECTION II. SECURITY DEPOSIT

- The security deposit for the rental premises is _____ Dollars (\$ _____) totaling _____ Dollars (\$ _____) including all the roommates combined deposits.

- The New Tenant agrees to accept responsibility for damages, which my pet(s), my guests, or that are cause and will reimburse the other roommate(s) for the part of their security deposit withheld for these damages.

SECTION III. RENT

- The total rent according to the lease agreement is _____ Dollars (\$_____) per month. The New Tenant agrees to pay _____ Dollars (\$_____) per month on or before the due date set forth in the lease agreement.
- All payments will be made to _____.
- The New Tenant understands that the owner of the property can evict all of the tenants if the landlord does not receive the rental payments in full and on time each month.

SECTION IV. UTILITIES

- The New Tenant agrees to pay 1/___ for the following utilities:

- The New Tenant agrees to pay 1/___ of the following services:

- The New Tenant agrees to place the following utilities in their name _____, and to ensure that monthly payments are collected and made by all co-tenants in full and on time.
- The New Tenant agrees to pay as follows for any additional utilities or services: _____.

SECTION V. MOVE-OUT

If, for any reason, the New Tenant moves out of the rental premises before the lease has concluded they realize that it is their responsibility to find a replacement tenant. The New Tenant is to take reasonable steps to find a replacement roommate who is acceptable to the present roommates. If one of the roommates moves out, the New Tenant understands that it the Landlord/Principal Tenant's responsibility to take reasonable steps to find a replacement tenant. The New Tenant understands that it is in the best interests of all roommates to replace any departing tenants.

SECTION VI. ADDITIONAL AGREEMENTS

Attached is a description of additional agreements that are incorporated into this contract, including: food/shopping arrangements; cleaning responsibilities;

privacy; parking; sharing of personal items; noise/study times; smoking/drinking; parties and entertaining; overnight guests; pets, etc.

SECTION VII. GOVERNING LAW

This Lease shall be governed by and construed in accordance with the laws of the State of Delaware.

_____(Tenant's Initials) – Tenant acknowledges that they have received a copy of Title 25 (Landlord-Tenant Code) from the landlord.

SECTION VIII. NOTICES

All legal notices should be sent to the contact details located below for each party:

Landlord/Principal Tenant

Street Address: _____

Telephone: _____

New Tenant

Street Address: _____

Telephone: _____

SECTION IX. AUTHORIZATION

The roommates have executed this agreement on this ____ day of _____, 20____.

Principal Roommate/Landlord's

Signature: _____

Printed Name: _____

New Roommate's

Signature: _____

Printed Name: _____

Co-Roommate's

Signature: _____

Printed Name: _____

Co-Roommate's

Signature: _____

Printed Name: _____

Co-Roommate's

Signature: _____

Printed Name: _____

Co-Roommate's

Signature: _____

Printed Name: _____

Co-Roommate's

Signature: _____

Printed Name: _____